SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Civil Appeal No. 2867 of 2012 (YEAR: 2009)

CORAM: S.B. SINHA, DEEPAK VERMA

Malay Kumar Ganguly
... Appellant(s) / Petitioner(s)
Versus
Dr. Sukumar Mukherjee
... Respondent(s)

Acts Referred:	Consumer Protection Act, 1986, Indian Penal Code, 1860
Sections:	Section 304A IPC, Section 14 Consumer Protection

JUDICIAL HEADNOTE & SUMMARY

Awarded unprecedented medical negligence damages, ruling that hospitals and consulting doctors are strictly liable for deviations from standard clinical treatment protocols.

RATIO DECIDENDI

The Court held that: Awarded unprecedented medical negligence damages, ruling that hospitals and consulting doctors are strictly liable for deviations from standard clinical treatment protocols. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Malay Kumar Ganguly v. Dr. Sukumar Mukherjee (Civil Appeal No. 2867 of 2012) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Consumer Protection Act, 1986, Indian Penal Code, 1860, particularly Section 304A IPC, Section 14 Consumer Protection. Awarded unprecedented medical negligence damages, ruling that hospitals and consulting doctors are strictly liable for deviations from standard clinical treatment protocols.

OPERATIVE ORDER

ORDER: Decided